

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

JUSTICE MALIK SHAHZAD AHMAD KHAN
JUSTICE MUHAMMAD SHAFI SIDDIQUI
JUSTICE SHAKEEL AHMAD

CRIMINAL PETITION NO. 539-L OF 2025

(On appeal against the judgment dated 14.10.2024 of the Lahore High Court, Bahawalpur Bench in Cr. Appeal No. 562/2023)

Zeeshan Khan

... Petitioner

Versus

The State etc

... Respondents

For the Petitioner: Mr. Farooq Haider Malik, ASC

For the State: Mr. Muhammad Jaffar, Addl. P.G. Punjab

Assisted by: Mr. Ghulam Muhammad Adnan, Law Clerk

Date of Hearing: 27.04.2026

ORDER

MALIK SHAHZAD AHMAD KHAN, J.- Zeeshan Khan,

petitioner, was tried by the learned Additional Sessions Judge, Yazman, District Bahawalpur pursuant to a case registered vide FIR No. 190 dated 06.05.2023 under Section 9(1)3(C) of the Control of Narcotic Substances Act, 1997 at Police Station City Yazman. The learned Trial Court vide its judgment dated 07.11.2023 convicted the petitioner under Section 9(1)3(c) of the Control of Narcotic Substances Act, 1997 and sentenced him to rigorous imprisonment for ten years. He was also directed to pay fine of Rs.200,000/- or in default whereof to further undergo six months simple imprisonment. Benefit of Section 382-B Cr.P.C. was extended in favour of the petitioner. In appeal, the learned High Court upheld the judgment of the learned Trial Court.

2. Arguments heard. Record perused.

3. Learned counsel for the petitioner has argued that no video recording of the recovery of narcotics was prepared in this case by the complainant/recovery officer. In this respect, he has referred to the judgment in the case of Ndukwe Udoka Peter Vs. The State (2025 SCMR 1657) passed by this Court whereby it was *inter alia* observed that non-recording of video film qua the recovery of narcotics had created doubt in the prosecution case.

4. To consider the said contention raised by learned counsel for the petitioner, leave is granted in this petition, which is converted into an appeal.

5. As per prosecution evidence, on 06.05.2023 at 09:15 AM, the appellant was caught red handed by the local police and charas weighing 3600 grams wrapped in three (03) packets of 1200 grams each, was recovered from his possession. Three sample parcels of 60 grams each were prepared for chemical analysis.

6. The recovery witnesses namely Pervez Ahmed, ASI/complainant (PW-2) and Musawar Hussain, constable (PW-3) were cross-examined at length but their evidence could not be shaken, which is confidence inspiring. The safe transmission of the parcel of contraband material/case property and sample parcel from the place of occurrence to the Maalkhana of Police Station and to the office of Punjab Forensic Science Agency has been established in this case through the confidence inspiring evidence of Mehboob Iftikhar, SI (PW-4), Mushtaq Ahmed, Moharrar (PW-5) and Pervez Akhtar, Moharrar (PW-1). The perusal of Laboratory report (Ex.PM) shows that the material recovered in this case was found to be charas.

7. Insofar as the contention of learned counsel for the appellant that non-recording of video film qua the recovery of narcotics has created doubt in the prosecution case, is concerned, learned counsel was unable to point out any provision of law or any rule whereby it was made mandatory for the recovery officer/complainant to record the video film of recovery proceedings. Although, learned counsel for the appellant has referred to the judgement of this Court reported as Ndukwe Udoka Peter Vs. The State (2025 SCMR 1657) but it is by now well settled that every criminal case is to be decided on the basis of its own peculiar facts. The facts of the above-referred case are distinguishable from the facts of the present case. We have noted that the first judgment in this respect was in the case of Zahid Sarfraz Gill Vs. The State (2024 SCMR 934) wherein it was observed that the complainant should record the video recording of the recovery proceedings but in the said case learned counsel for the accused brought to the notice of the Court that the FIR of the said case was registered on 29.05.2023 as a counter blast to the written application submitted by the accused/petitioner of the said case against the police officials on 17.05.2023 and he further submitted that the record had established that the accused of the said case was not present at the stated place of incident, therefore, keeping in view the said peculiar facts of the above-mentioned case, it was observed that non-recording of the video film had made the said case as one of further inquiry, hence, the accused of said case was granted post-arrest bail. Likewise, the facts of the case of 'Ndukwe Udoka Peter' *ibid* are also distinguishable from the facts of the present case. Moreover, the orders in both the above-mentioned cases were passed in bail

matters, whereas the instant case is in respect of main appeal of the petitioner. The entire prosecution case has been recorded in this case. The appellant could not establish any enmity with the local police for his false involvement in this case. We are, therefore, of the view that the facts of the above-mentioned judgments are distinguishable from the facts of the present case, therefore, the said judgments are of no avail to the appellant. As there was no previous enmity of the appellant with the local police, therefore, the video recording of the recovery of narcotics was not mandatory in this case and the same is also not mandatory in each and every case as the said exercise is not the requirement of any law or rule on the subject. We are, therefore, of the view that the sole ground of non-recording of the video of the proceedings of recovery of narcotics, in absence of other valid grounds, could not be made basis either to grant bail to an accused or to acquit him of the charge after conclusion of the trial. Learned counsel for the appellant is unable to point out any misreading/non-reading of evidence or material illegality in the impugned judgment, warranting interference by this Court. There is no substance in this appeal, hence, the same is hereby dismissed.

JUDGE

JUDGE

JUDGE

Lahore, the
27th of April, 2026
Approved For Reporting
Khurram